

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kathryn Duffy	Team: Team # 1	CCRB Case #: 201005463	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 04/19/2010 11:59 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/19/2011	Precinct: 43
Date/Time CV Reported Tue, 04/20/2010 12:10 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/26/2010 1:31 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Suarino	23186	946301	HBX/QIM
2. POM Daniel Oconnell	08496	943619	HBX/QIM
3. POM Lawrence Stayton	26216	946291	HBX/QIM
4. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . POM Richard Suarino	Force: PO Richard Suarino used physical force against § 87(2)(b)	A . Complainant Uncooperative
B . POM Lawrence Stayton	Force: PO Lawrence Stayton used physical force against § 87(2)(b)	B . Complainant Uncooperative
C . POM Daniel Oconnell	Force: PO Daniel Oconnell used physical force against § 87(2)(b)	C . Complainant Uncooperative
D . An officer	Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b)	D . Complainant Uncooperative
E . An officer	Force: An officer struck § 87(2)(b) with a blunt instrument.	E . Complainant Uncooperative

Case Summary

The following complaint of police misconduct was made to 911 by § 87(2)(b) on April 19, 2010. The complaint was forwarded to the IAB command center and was subsequently sent to the CCRB using log number 10-19869, where it was received on April 26, 2010.

§ 87(2)(b) stated that on April 19, 2010, at approximately 11:59 pm, he was approached by three officers who struck him. He said that one of the officers may have struck him in the head with a blunt object such as a flashlight but he could not be certain. During a phone call with the undersigned investigator on April 28, 2010, § 87(2)(b) added that when the officers first approached him, one of the officers told him that the neighborhood was full of “bitches and dickheads” prior to using physical force against him. IAB supplied the names of PO Richard Suarino, PO Daniel O’Connell, and PO Lawrence Stayton from the Housing Boro Bronx/Queens Impact Response Team as subject officers. § 87(2)(g)

The undersigned investigator received the case on April 28, 2010, and sent a contact letter and called § 87(2)(b) on the same day. § 87(2)(b) later called back and provided a brief telephone statement that was consistent with the intake narrative and provided some additional information, but declined to schedule an in-person interview. The undersigned investigator called four additional times between April 28, 2010, and May 5, 2010, but never reached § 87(2)(b) to schedule an interview. On the final call, the undersigned left a voicemail message indicating that the case would be closed without further investigation if § 87(2)(b) did not contact the CCRB by Friday, May 7. A second contact letter was sent on May 4, 2010, and neither letter has been returned by the US Postal Service as of the date of this report.

§ 87(2)(g) it is recommended that the complaint be closed, complainant uncooperative.

Team: ____1____

Investigator: _____ Kathryn Duffy _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date